

24CHCV03008 24CHCV03008

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Case Number: 24CHCV03008 Hearing Date: July 31, 2026 Dept: F46

Dept. F-46

Hearing Date: July 30, 2026

Case Number: 24CHCV03008

PLAINTIFF'S MOTIONS TO COMPEL DEFENDANT'S FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE, AND REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, AND FOR MONETARY SANCTIONS

Motions filed on April 24, 2026.

MOVING PARTY: Michael Lee Cologna

RESPONDING PARTY: Vitalii Vorobets

NOTICE: OK.

RELIEF REQUESTED: Orders compelling verified, code-compliant responses to Form Interrogatories, Set One, and Requests for Production of Documents, Set One, Nos. 1 through 68, deeming objections waived, compelling production of responsive documents, and awarding monetary sanctions.

RULING: Both motions are granted in part. Monetary sanctions are denied.

BACKGROUND

On August 21, 2024, Michael Lee Cologna (Plaintiff) filed this action against Vitalii Vorobets (Defendant) and Spark Prime Logistics, Inc. (Spark Prime), alleging causes of action for negligence, negligent entrustment, and negligent hiring, supervision, and retention. Trial is set for October 9, 2028.

On June 4, 2025, Plaintiff served Form Interrogatories, Set One, and Requests for Production of Documents, Set One, Nos. 1 through 68, on Defendant. On March 16, 2026, Defendant served responses asserting the same unavailability objection to most of the Form Interrogatories and to all 68 production demands. Defendant did not respond to Form Interrogatory Nos. 3.1 through 3.7, 4.1 through 4.2, 16.3 through 16.5, and 16.7 through 16.10. Plaintiff demanded substantive verified responses by March 23, 2026. None were served. (Larian FROG Decl. ¶¶ 3-7, Exs. 1-3; Larian RPD Decl. ¶¶ 3-7, Exs. 1-3.)

Plaintiff filed these motions to compel concerning Form Interrogatories, Set One, and Requests for Production of Documents, Set One, on April 24, 2026, each supported by the declaration of Alexander Larian and separate statements. Defendant filed oppositions, supporting declarations of Katherine Andrews, and opposition separate statements on July 17, 2026. Plaintiff filed replies on July 20, 2026.

ANALYSIS Procedural Issues

Responses containing only objections need not be verified. (Code Civ. Proc., §§ 2030.250, subd. (a), 2031.250, subd. (a).) A party challenging the sufficiency or merits of such objections must proceed by motion to compel further responses. Such a motion requires a reasonable and good

faith attempt to resolve the dispute informally and a separate statement identifying the discovery requests, responses, and reasons further responses are required. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1), 2031.310, subd. (b)(2). Cal. Rules of Court, rule 3.1345(a), (c).)

Here, Defendant timely served objection-only responses to most of the Form Interrogatories and to Request for Production Nos. 1 through 68. The absence of verifications does not convert those responses into a complete failure to respond because verification was not required for objection-only responses. The Court therefore treats the motions as motions to compel further responses under sections 2030.300 and 2031.310 as to the discovery that received objection-only responses.

Defendant did not respond to Form Interrogatory Nos. 3.1 through 3.7, 4.1 through 4.2, 16.3 through 16.5, and 16.7 through 16.10. As to those interrogatories, the motion is governed by section 2030.290. Objections to those interrogatories are waived by operation of section 2030.290, subdivision (a).

The Court finds that Plaintiff adequately met and conferred. Plaintiff's March 16, 2026 correspondence identified the common defect in both sets of responses, demanded substantive verified responses by March 23, 2026, and advised that motions would follow. (Larian FROG Decl. ¶¶ 6-7, Ex. 3; Larian RPD Decl. ¶¶ 6-7, Ex. 3.) Because Defendant asserted the same objection to each interrogatory and production demand that received a response, a request-by-request discussion would have been duplicative. Plaintiff's separate statements are also sufficient. They quote the common response, identify the discovery at issue, state the reasons further responses are required, and, together with the attached discovery and responses, permit the Court to evaluate the dispute without prejudice to Defendant.

Compel Further: Form Interrogatories, Set One

A party may move to compel a further interrogatory response where an answer is evasive or incomplete or an objection lacks merit or is too general. Each answer must be as complete and straightforward as the information reasonably available permits. If an interrogatory cannot be answered completely, it must be answered to the extent possible. (Code Civ. Proc., §§ 2030.220, subd. (c), 2030.300, subd. (a).)

Here, Defendant served the same objection to Form Interrogatory Nos. 1.1, 2.1 through 2.13, 7.1 through 7.3, 9.1 through 9.2, 12.1 through 12.7, 13.1 through 13.2, 14.1 through 14.2, 15.1, 16.1 through 16.2, 17.1, and 20.1 through 20.11. Each response states that defense counsel cannot locate or communicate with Defendant and therefore cannot obtain the information or verification necessary to provide a substantive response. Defendant did not respond to Form Interrogatory Nos. 3.1 through 3.7, 4.1 through 4.2, 16.3 through 16.5, and 16.7 through 16.10.

In opposition, defense counsel contends that the objection-only responses were necessary because counsel has been unable to locate Defendant despite diligent efforts and therefore cannot obtain verified substantive responses. (Andrews FROG Decl. ¶¶ 3-14.) Defendant's absence is not an excuse or a proper basis for withholding responses to properly served discovery requests.

In the absence of any requested relief from the Court based on Defendant's unavailability, Defendant must provide code-compliant responses to discovery. Defendant's unavailability objection is overruled as to the interrogatories that received that objection. Initial responses without objection must be provided to the interrogatories that received no response. Verified substantive responses must therefore be provided to each interrogatory identified above. The motion is granted.

Compel Further: Requests for Production of Documents, Set One

A party may move to compel further responses where a representation of inability to comply is inadequate, incomplete, or evasive or an objection lacks merit or is too general. The moving party must set forth specific facts showing good cause for the discovery sought. (Code Civ. Proc., § 2031.310, subds. (a), (b)(1).) A representation of inability to comply must affirm that a diligent search and reasonable inquiry were made, state the reason compliance is not possible, and identify any person or organization known or believed to possess responsive documents. (Code Civ. Proc., § 2031.230.)

Here, Plaintiff has shown good cause for the requested production. Request for Production Nos. 1 through 68 seek documents concerning the collision, the involved vehicles, insurance coverage, witnesses, statements, photographs and recordings, communications, vehicle ownership and maintenance, electronic vehicle data, Defendant's driving history and qualifications, employment and training, dispatch and driving logs, applicable policies and procedures, and Defendant's defenses. These matters bear directly on liability, causation, agency, the condition and operation of the vehicle, Defendant's qualifications and conduct, and the defenses asserted in this action. (Larian RPD Decl. ¶ 3, Ex. 1.)

Defendant served the same objection to Request for Production Nos. 1 through 68. Each response states that defense counsel cannot locate or communicate with Defendant and therefore cannot determine whether responsive documents exist or are within Defendant's possession, custody, or control. Defendant produced no documents.

In opposition, defense counsel contends that the objection-only responses were necessary because counsel has been unable to locate Defendant despite diligent efforts and therefore cannot determine whether responsive documents exist or can be produced. (Andrews RPD Decl. ¶¶ 3-14.) Defendant's absence is not an excuse or a proper basis for withholding responses or responsive documents to properly served discovery requests.

In the absence of any requested relief from the Court based on Defendant's unavailability, Defendant must provide code-compliant responses to discovery. Defendant's objection based on his unavailability is overruled. Verified substantive responses must be provided to Request for Production Nos. 1 through 68, and all responsive documents within Defendant's possession, custody, or control must be produced. The motion is granted.

Sanctions

The Court shall impose monetary sanctions unless it finds that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h).)

Here, defense counsel attempted to contact Defendant through the telephone number in his employment records, contacted Spark Prime for updated contact information, and made inquiries through current and former drivers. Defendant is believed to have returned to Poland, and counsel has no reliable means of contacting him. (Andrews FROG Decl. ¶¶ 3-14; Andrews RPD Decl. ¶¶ 3-14.) Under these circumstances, monetary sanctions would be unjust. Sanctions are denied.

CONCLUSION

Plaintiff's motion concerning Form Interrogatories, Set One, is GRANTED as follows.

As to Form Interrogatory Nos. 1.1, 2.1 through 2.13, 7.1 through 7.3, 9.1 through 9.2, 12.1 through 12.7, 13.1 through 13.2, 14.1 through 14.2, 15.1, 16.1 through 16.2, 17.1, and 20.1 through 20.11, the motion to compel further responses is granted. Defendant's objection based on his unavailability is overruled. Within 30 days after service of notice of ruling, Defendant shall serve verified, code-compliant further responses.

As to Form Interrogatory Nos. 3.1 through 3.7, 4.1 through 4.2, 16.3 through 16.5, and 16.7 through 16.10, the motion to compel responses is granted. Within 30 days after service of notice of ruling, Defendant shall serve verified, code-compliant responses without objection.

Plaintiff's request to deem all objections waived is DENIED, except that objections are waived by operation of Code of Civil Procedure section 2030.290, subdivision (a), as to the interrogatories that received no response.

Plaintiff's Motion to Compel Further Responses to Requests for Production of Documents, Set One, Nos. 1 through 68, is GRANTED. Defendant's objection based on his unavailability is overruled. Within 30 days after service of notice of ruling, Defendant shall serve verified, code-compliant further responses.

Plaintiff's requests for monetary sanctions are DENIED.